

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL
FILING OR CYBERSECURITY GUIDE**

Public Redacted Response Brief of DOE

Filed: April 13, 2026 **Synthetic docket:** SYN-CA4-26-CV-4106 **Counsel:** Corin Pell, fictional counsel for the United States Department of Energy

Summary of DOE's Position

DOE asks the Court to affirm the district court's FOIA judgment. The responsive records were compiled for the fictional agency's protective law-enforcement work, and the disputed operational passages describe how concealed decision conditions relate to ordered responses, escalation fields, assigned functions, safety references, and coordination channels. DOE maintains that its declarations and Vaughn materials justify the remaining 7(E) and 7(F) withholdings.

The agency recognizes that its supplemental review released seventeen passages across eleven replacement pages. It contends that the correction demonstrates continuing segregability review rather than invalidating the determinations that remain. No record or source-page total changed, and no withheld operational value appears in the public production.

DOE separately requests continued protection for the controlled semantic-placement filings while the Court considers the appeal. It agrees that public counterparts must remain available and that any restriction should be document-specific and reviewable. If the Court finds the district court's access findings insufficient, DOE submits that remand on sealing can occur without disturbing the exemption judgment or ordering disclosure of information protected under 7(E).

Review Framework

Jurisdiction arises under 28 U.S.C. § 1291 from the final district-court judgment entered January 2, 2026. The appellate record permits de novo assessment of the FOIA legal questions and review of whether the agency's evidentiary showing supports summary judgment.

Agency declarations may establish an exemption when they are reasonably specific, logically connected to the statutory interest, and not contradicted by record evidence or an indication of bad faith. The agency need not expose the protected content to explain why it is protected. Functional descriptions and representative categories are appropriate where greater detail would defeat the exemption.

DOE also acknowledges the separate duties imposed by 5 U.S.C. § 552(a)(8)(A) and FOIA's segregability sentence. It asserts that its declarants considered foreseeable harm and separability for each responsive record. Judicial access is governed by a different inquiry. Under *Company Doe v. Public Citizen*, a court must consider the source of access, alternatives to closure, and findings directed to the restricted material. DOE does not argue that an exemption automatically decides the access status of every judicial filing.

Search and Processing History

Open Grid's request DOE-FOIA-2024-OG-041 was acknowledged through ACK-OG-0610 and narrowed by CLR-OG-0621. The clarification excluded drafts, ordinary correspondence, actual incidents, configuration information, credentials, personal contacts, and other authentic technical matter. The agency processed the final fictional playbooks and governance instruments through RLS-OG-001, DOE-APR-2024-OG-017, and FAD-OG-1007.

SRCH-OG-2025-0804 documents a reduction from 16,842 raw results to 1,284 deduplicated candidates, then forty-six custodian-reviewed files and twelve responsive records totaling 200 pages. Decision trees account for sixty pages, escalation matrices for fifty-four, coordination appendices for sixty-four, and governance instruments for twenty-two.

Three records and fifty-four pages were withheld entirely, seven records and 124 pages were released in part, and two records and twenty-two pages were released completely. Among 146 produced images, sixty-eight had no blackout and seventy-eight did. Sixty-two redacted images cited 7(E), fifty-one cited 7(F), and thirty-five cited both. Each of the fifty-four fully withheld pages cited 7(E); thirty-nine also carried a 7(F) basis.

Qualifying Law-Enforcement Purpose

DOE's declarations explain that the final playbooks were assembled to guide the fictional agency's prevention, recognition, and coordinated handling of unlawful attacks affecting protected operations. That function falls within Exemption 7's law-enforcement threshold. Open Grid no longer disputes the search or the threshold, narrowing the merits to the individual subparts and segregability.

The threshold remains relevant to context. These are not general educational pamphlets collected incidentally by an agency. The decision trees, escalation matrices, and coordination appendices form an integrated protective framework. Removing a field from one page does not always remove the information supplied by its position relative to a neighboring field or a repeated structure elsewhere.

DOE nevertheless agrees that purpose alone cannot protect every sentence. The twenty-two governance pages were released completely, and administrative passages within other families were reviewed separately. The agency's position is that the remaining deletions either reveal a protected operational relationship, carry a supported safety consequence, or cannot be separated without exposing those matters. It does not ask the Court to adopt a subject-matter exemption for all Grid Sentinel materials.

Seven(E) Covers the Decision Framework

The public record substitutes [REDACTED—FICTIONAL DECISION CONDITION] for a trigger position, [REDACTED—FICTIONAL RESPONSE ORDER] for an ordering position, and [REDACTED—FICTIONAL ESCALATION VALUE] for an escalation field. DOE's declarations describe how disclosure of the concealed relationships would reveal the design of a nonpublic protective method.

Under 7(E), techniques and procedures may be withheld, and qualifying guidelines are protected where disclosure could reasonably be expected to risk circumvention. *Grey v. Alfonso-Royals* protects nonpublic implementation detail, and *Zaid v. Department of Justice* permits functional categories rooted in document-by-document review. DOE supplied that account for the operational decision trees.

Open Grid now accepts much of this conclusion. The remaining dispute concerns the edge of the protected relationship. DOE submits that captions or administrative phrases may sometimes disclose structure when read beside a redaction, across matched pages, or in conjunction with released family descriptions. The district court properly credited the agency's explanation that isolated fragments cannot always be evaluated without their relational context.

Context Can Reveal a Protected Relationship

Open Grid describes several disputed passages as neutral ownership, edition, or heading information. DOE agrees that such information is not inherently exempt. Its declarations state, however, that some placements communicate the role of a concealed field, distinguish a trigger from a response, or reveal where escalation enters a sequence.

Grey and PEER v. United States Section, International Boundary and Water Commission permit protection when disclosed context would reveal a technique, procedure, or circumvention-sensitive guideline. The relevant information is not limited to the hidden word considered in isolation. It includes the nonpublic relation a reader could infer from surrounding structure.

DOE does not rely on adjacency alone. It released general governance records and later restored additional administrative text after reassessing whether the inference remained possible. For the current redactions, the declarations state that the fragment would expose the function or ordering of a concealed element. The Court should evaluate those explanations as a whole and avoid requiring a public description so granular that it reconstructs the protected framework.

The Agency Addressed Foreseeable Harm

DOE considered the interest protected by each invoked exemption as required by § 552(a)(8) (A). For 7(E), it identified the risk that disclosure of trigger relationships, response ordering, implementation context, or escalation structure would make the fictional protective framework predictable in a manner that could facilitate circumvention.

The public notices do not themselves reveal those relationships. They allow DOE to describe why a type of placement matters. A reader seeing [REDACTED—FICTIONAL DECISION CONDITION] next to [REDACTED—FICTIONAL RESPONSE ORDER] knows only that two categories exist, not their content or logic. Additional fragments, however, could supply the missing relationship according to the declarants.

For 7(F), the agency predicted harm where disclosure would expose the assignment or accessibility of an individual-connected protective function. DOE did not invoke a universal presumption that anything related to safety is dangerous. It used categories to avoid publishing the identifying connection. The district court reasonably concluded that the declarations tied the retained withholdings to the interests the exemptions protect.

The Vaughn Presentation Is Sufficient

The primary and supplemental Vaughn materials identify each of the twelve records, its family and disposition, the field types withheld, the exemption invoked, and the functional consequence DOE predicts from release. *Rein v. United States Patent and Trademark Office* requires enough specificity for meaningful review; it does not prescribe a line-by-line public transcription that would expose protected relationships.

DOE used recurring categories because the same operational functions appear across final playbooks. The notices for a fictional duty role, safety reference, or contact channel mark kinds of information rather than substitute for the explanation. Entries distinguish operational placement from ordinary governance text and connect the former to circumvention or individual-safety concerns.

The controlled materials allow the panel to confirm placement without receiving authentic cyber information. The public descriptions permit adversarial testing of the legal theory. Together they supply the useful granularity FOIA requires. Although Open Grid proposes even narrower entries, disagreement about optimal detail does not make the agency's showing conclusory where the record already states the document, function, statutory basis, and predicted harm.

Functional Categories Reflect Repeated Uses

The twelve records contain repeated structural elements across four families. DOE grouped withholdings when disclosure would reveal the same operational function or safety relationship, not merely because two fields shared a name. A functional approach avoids both needless repetition and public disclosure of a pattern through overly atomized descriptions.

The agency released the governance instruments in full and left sixty-eight produced images without blackout. Those outcomes show that it did not treat the collection as categorically exempt. Within partly released records, it disclosed narrative and administration where that text did not reveal a protected relationship. The seventy-eight redacted images reflect the narrower set where the agency determined a statutory interest remained.

Open Grid's examples demonstrate that a label can have different hypothetical uses, but the declarations address the uses actually represented in this fictional record. The Court may credit those sworn functional descriptions absent contradiction or bad faith. If it finds an individual category ambiguous, the suitable response is a limited remand for clarification rather than wholesale rejection of the agency's grouped methodology.

Seven(F) Protects Individual-Connected Fields

Exemption 7(F) applies when production of law-enforcement information could reasonably be expected to endanger the life or physical safety of an individual. DOE's retained safety claims concern assignments, dependencies, and coordination placements that the declarants linked to identifiable protective functions, even though public descriptions omit identities and values.

The notices [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL SAFETY REFERENCE], and [REDACTED—FICTIONAL CONTACT CHANNEL] are deliberately nonfunctional. They show the kinds of fields at issue. The agency's claim rests on the underlying placement and described relationship, not on a bare safety word.

EPIC v. Department of Homeland Security permits an agency to establish the expected danger without publicly naming the individual exposed. DOE explained that selected disclosures would reveal how an individual-connected duty or coordination point fits within the protective structure. It therefore submits that the district court properly sustained 7(F), including the thirty-nine fully withheld pages on which that exemption accompanied 7(E).

The Safety Showing Is Not Limited to Named Persons

Open Grid argues that DOE failed to identify the endangered individual for every category. The statute asks whether disclosure could reasonably be expected to endanger an individual; it does not require the public Vaughn index to name that person or reproduce the identifying connection.

DOE's declarations describe the relationship between selected duty assignments, safety dependencies, coordination points, and persons involved in protective activity. Providing the omitted value would defeat the withholding. The agency instead explained the function and the manner in which exposure could increase risk. That method preserves the ability to contest whether the relation is sufficiently concrete.

The agency agrees that a general office owner or abstract policy citation would not automatically satisfy 7(F). Its current claims concern the subset the reviewers found connected to individual safety after the supplemental pass. If the Court concludes that a particular category lacks adequate explanation, DOE requests an opportunity to supplement on remand while preserving independent 7(E) protection. It opposes a categorical disclosure directive that could override another exemption.

Segregability Review Was Document Specific

DOE's reviewers considered whether nonexempt information could be meaningfully released after deletion of protected matter. They released two governance records in full, portions of seven other records, and sixty-eight images without any blackout. Those results support the declarations' account of a real segregation process rather than an all-or-nothing presumption.

For remaining deletions, the agency concluded that isolated fragments would reveal the function of a concealed relationship or become unintelligible after removal of exempt information. FOIA does not require production of meaningless remnants, nor does it require disclosure that allows a protected relation to be reconstructed across pages.

The supplemental production further demonstrates review. RLS-OG-002 restored seventeen passages on eleven replacement pages—two passages on six pages and one on five—while maintaining the twelve-record and 200-page totals. DOE corrected prior line drawing where context could safely stand. The district court was entitled to credit the updated declarations that the current boundaries represent the reasonably segregable result.

The Supplemental Release Strengthens the Current Record

Open Grid treats the seventeen newly released passages as evidence that the agency's conclusions remain unreliable. DOE views the same event as a documented quality-control step. FOIA encourages release when further review shows that a narrower boundary is available; an agency should not be penalized merely for making that correction during litigation.

The supplemental release did not alter the responsive universe, add a record, or change any source-page total. It replaced eleven production pages with versions carrying additional public text. Exactly six replacements restored two passages and five restored one. The controlled operational relationships remained withheld.

Those facts provide a concrete basis for the current segregability declaration. The reviewers did not simply repeat the initial result. They reexamined context, modified eleven pages, and affirmed the remaining boundaries. The Court may conclude that the district court should have described this process more fully, but the proper consequence would be a focused remand. The supplemental action does not justify a presumption that every continuing redaction contains additional separable material.

Judicial-Record Access May Be Addressed Separately

DOE sought interim appellate treatment for four controlled counterparts only: the sealed opening, response, and reply briefs and the controlled joint appendix excerpts. Each has an equal-page public version. The motion and certificate remain public, identify eligible viewers, and describe a revocable per-document session boundary.

That approach is narrower than the district court's treatment and is consistent with the analysis required by Company Doe. DOE does not insist that a valid FOIA exemption automatically seals an entire judicial record. It submits that the harmless controlled placements should remain stable during adjudication so the panel can evaluate the parties' positions without collapsing the exercise's public-controlled distinction.

If this Court finds the district court's findings too broad, it may vacate and remand that order independently. Such a ruling should make clear that public access remains subject to protection of any operational relationship sustained under 7(E), and that a lower court may impose a narrower restriction on adequate material-specific findings. The exemption judgment need not rise or fall with the sealing order.

Appropriate Disposition

DOE principally asks for affirmance of the exemption and segregability judgment. The record establishes the law-enforcement threshold, the operational function protected by 7(E), the expected safety consequence asserted under 7(F), and the renewed review that produced RLS-OG-002.

If the Court finds the 7(F) or segregability explanation insufficient in any respect, it should remand for a more precise agency determination without ordering disclosure and without disturbing 7(E) protection. Likewise, any defect in the district court's judicial-access findings can be remedied through a separate sealing remand while controlled placements remain protected on an interim basis.

The Court should avoid a disposition that treats the fictional notices as substantive evidence of operational content. They communicate only field type. The agency's declarations and controlled placement record supply the functional explanation. Any mandate should preserve the ability to protect supported nonpublic trigger, ordering, escalation, implementation, person-connected, and coordination relationships while requiring additional analysis only where this Court identifies a specific deficiency.

Conclusion

The agency processed a defined twelve-record collection, released both governance records, partly released seven operational records, and documented three full withholdings. It then revisited the material and restored seventeen additional passages without exposing the relationships its declarants identified as protected. That history supports, rather than contradicts, the current determinations.

DOE respectfully requests affirmance. In the alternative, it requests a limited remand for any category the Court finds insufficiently explained, with no direct disclosure order and no displacement of independently valid 7(E) protection. It does not oppose separate vacatur of overbroad district-court sealing if the Court requires new document-specific findings, provided the controlled counterparts retain interim protection during that process.

Corin Pell certifies that this public response uses only approved fictional redaction notices, includes no controlled inert label or authentic cyber detail, and was served on Tamsin Roe and Leo Marr through the synthetic appellate docket on April 13, 2026.